

HOUSE BILL 1775

By Scarbrough

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 56 and Title 71, relative to cancer testing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 56, Chapter 7, Part 10, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Cost-sharing requirement" means a deductible, coinsurance, copayment, or any similar out-of-pocket expense;

(2) "Evidenced-based cancer imaging" means evidence-based cancer imaging modalities in accordance with the most recent version of the National Comprehensive Cancer Network (NCCN) clinical practice guidelines;

(3) "Genetic testing for an inherited mutation" means germline multi-gene testing for an inherited mutation associated with an increased risk of cancer in accordance with evidence-based, clinical practice guidelines;

(4) "Health plan" means a policy, contract, certification, or agreement offered or issued by an insurer to provide, deliver, arrange for, pay for, or reimburse any of the costs of healthcare services;

(5) "Healthcare service" means an item or service furnished to an individual for the purpose of preventing, diagnosing, alleviating, curing, or healing human illness, injury, or physical disability; and

(6) "Insurer" means an entity subject to the insurance laws and rules of insurance in this state or subject to the jurisdiction of the commissioner, that

contracts or offers to contract to provide, deliver, arrange for, pay for, or reimburse the costs of healthcare services under a health plan in this state.

(b) A health plan, or an insurer offering a health plan, must include coverage for:

(1) Clinical genetic testing for an inherited gene mutation for an individual with a personal or family history of cancer that is recommended by a healthcare professional; and

(2) Evidenced-based cancer imaging for an individual with an increased risk of cancer as recommended by NCCN clinical practice guidelines.

(c) Coverage required by subsection (b) must not be subject to cost-sharing requirements.

(d) If, under federal law, application of subsection (b) would result in health savings account ineligibility under § 223 of the federal internal revenue code (26 U.S.C. § 223), then this requirement applies for health savings account-qualified high deductible health plans with respect to the deductible of such a plan after the enrollee has satisfied the minimum deductible under § 223 of the federal internal revenue code (26 U.S.C. § 223), except for items or services that are preventive care pursuant to § 223(c)(2)(C) of the federal internal revenue code (26 U.S.C. § 223(c)(2)(C)), in which case the requirements of subsection (b) apply regardless of whether such minimum deductible has been satisfied.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to plans issued, amended, or renewed on or after that date.